

Court No. - 32

Case :- WRIT - C No. - 43002 of 2019

Petitioner :- Arshad Hussain

Respondent :- Uttar Pradesh Power Corporation Limited And 3 Others

Counsel for Petitioner :- Sandeep Kumar, Rahul Kumar Tiwari

Counsel for Respondent :- C.S.C., Usha Kiran

Hon'ble Shashi Kant Gupta, J.

Hon'ble Piyush Agrawal, J.

This writ petition has been filed, inter alia, for the following relief:

"(i) Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery citation dated 04.12.2019 issued by the respondent no. 4 (Annexure No. 7 to this writ petition) and impugned demand notice dated 22.01.2019 issued by the respondent no. 3 (Annexure No. 3 to this writ petition).

Heard the learned counsel for the petitioner, Ms. Usha Kiran, learned counsel for the electricity department and perused the record.

Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity Supply Code 2005. He has further submitted that till date, the copy of the provisional assessment order as well as Inspection Report have not been served upon him by the Electricity Department.

Be that as it may, it is open for the petitioner to file an application before the concerned

Executive Engineer for supplying the copy of the provisional assessment order as well as the Inspection Report. In case, any such application is filed by the petitioner before the concerned authority, the same may be served upon him within a period of one week.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 16.01.2020 at 11.00 A.M. before the Respondent No.3, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.3, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of six weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner. In case of default in filing the objection/representation, as indicated herein above, the present interim order shall stand vacated and the impugned recovery citation shall stand revived automatically.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

With the above observations, the writ petition stands disposed of.

Order Date :- 2.1.2020/Arun